

plaintiff's causes of action); *City of Santa Monica v Stewart* (2005) 126 Cal.App.4th 43 (unlike in this matter, *City of Santa Monica* involved a motion to strike the entirety of a cross action); and *Young v. Tri-City Healthcare District* (2012) 210 Cal.App.35 (unlike in this matter, *Young* involved a motion for reconsideration and did not involve any cross-action or cross complaint) as factually distinguishable. (Cross-Complainants' Reply, p. 3-5).

The Court finds that given that there are so many overlapping facts such as the location of the Pipe Property; purchase history; existence of the and terms of the 1951 Deed and Permit; ruling in *Pear v. CCSF*; and dealings regarding the Cross-Complainants 2024 redesign and submission of the parking scheme in accordance with *Pear v. CCSF* ruling and the City's rejection that are present in the Complaint and Cross Complaint as well as privileged litigation communications involved in the Cross-Complaint in the appeal that may require a court to consider such evidence if the Complaint was bifurcated, the court finds that the facts are inextricably intertwined. The court notes that the purpose of section 916(a) is to protect the jurisdiction of the appellate courts by preserving the status quo until the appeal is decided. To court cannot bifurcate the Complaint as underlying issues are embraced or affected by the appeal of the Anti-SLAPP motion of the Cross-Complaint. The court takes into consideration the interest of judicial economy, efficient, and justice to promote a consistent result as best being served by a stay.

IV. CONCLUSION

Based on the foregoing, Cross-Complainants Pears motion to bifurcate is DENIED. The Court will prepare the formal Order.

Calendar Lines # 6

Case Name Twomagnets, LLC vs Coraopolis Rehabilitation and Wellness Center, LLC et al

Case No. 25CV481376

Motion to Confirm Arbitration Award

I. BACKGROUND

On April 17, 2026, Petitioner Twomagnets LLC d/b/a Clipboard Health ("Clipboard Health") filed this motion to confirm a September 5, 2025 arbitration award in favor of Clipboard Health and against respondents Coraopolis Rehabilitation and Wellness Center, LCC and CHMS Group LLC. The motion was accompanied by a proof of service indicating overnight service and electronic service to Altitude Health Service and Palos Heights Rehabilitation—nonparties—on that same day.

On May 1, 2026, petitioner submitted a Notice of Errata, submitting that the attached proof of service to the nonparties was in error and submitted proof of service to the respondents Coraopolis Rehabilitation and Wellness Center, LCC and CHMS Group LLC indicating mail service on April 17, 2026 as well as proof of service of the notice of errata on May 1, 2026 via mail service.

The motion is unopposed. Per California Code of Civil Procedure section 1005(b) opposition papers were due on May 27, 2026. No opposition papers were filed. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the plaintiff has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

The Court has carefully reviewed the following moving papers: Petitioner Clipboard Health's Notice and Memorandum of Points and Authorities for a Motion to Confirm Arbitration Award (totaling 11 pages); Declaration

of Samay Jhunjhunwalla and attached Exhibits A-B and Declaration of Aaron B. Bloom and attached Exhibits C-D in support of the petitioner's motion (totaling 68 pages); proofs of service; notice of errata (totaling 6 pages); and the pleadings.

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure sections 1285 and 1286, any of the parties may file a petition with the court, which must then "confirm the award, correct and confirm it, vacate it, or dismiss the petition." (Code Civ. Proc. §§ 1285, 1286; *EHM Productions, Inc. v. Starline Tours of Hollywood, Inc.* (2018) 21 Cal.App.5th 1058, 1063). Once arbitration is concluded, "any arbitrator's award is enforceable only when confirmed as a judgment of the superior court." (*O'Hare v. Municipal Resource Consultants* (2003) 107 Cal.App.4th 267, 278). "It is well settled that the scope of judicial review of arbitration awards is extremely narrow." (*California Faculty Assn. v. Superior Court* (1998) 63 Cal.App.4th 935, 943). "Neither the trial court, nor the appellate court, may 'review the merits of the dispute, the sufficiency of the evidence, or the arbitrator's reasoning, nor may we correct or review an award because of an arbitrator's legal or factual error, even if it appears on the award's face.'" (*EHM Productions, supra*, at pp. 1063-64).

A. FILING REQUIREMENTS

Code of Civil Procedure section 1285.4 requires: "A petition under this chapter shall:

- a. Set forth the substance of or have attached a copy of the agreement to arbitrate unless the petitioner denies the existence of such an agreement.
- b. Set forth the names of the arbitrators.
- c. Set forth or have attached a copy of the award and the written opinion of the arbitrators, if any."

B. SERVICE OF THE ARBITRATION AWARD AND TIMELINESS OF PETITION

Code of Civil Procedure section 1283.6 provides that: "The neutral arbitrator shall serve a signed copy of the award on each party to the arbitration personally or by registered or certified mail or as provided in the agreement." In addition, a party may seek a court judgment confirming an arbitration award by filing and serving a petition no more than four years, but not less than 10 days, after the award is served. (Code Civ. Proc., §§ 1288, 1288.4).

C. SERVICE OF PETITION AND NOTICE OF HEARING

Under Code of Civil Procedure section 1290.4, which governs proper service of this motion states, in pertinent part:

- a. "(a) A copy of the petition and a written notice of the time and place of the hearing thereof and any other papers upon which the petition is based shall be served in the manner provided in the arbitration agreement for the service of such petition and notice.
- b. (b) If the arbitration agreement does not provide the manner in which such service shall be made and the person upon whom service is to be made has not previously appeared in the proceeding and has not previously been served in accordance with this subdivision:
 - (1) Service within this State shall be made in the manner provided by law for the service of summons in an action."

III. ANALYSIS

Petitioner seeks an order confirming the arbitration award issued on September 5, 2025.

Here, Petitioner submits the written Final Award issued by the Arbitrator. (Declaration of Bloom; Exhibit B). Petitioner also submits a copy of the arbitration agreement between the parties. (Petitioner's motion, Exhibit A.) Petitioner has satisfied the filing requirements.

Petitioner submits a letter showing the Final Award was served by JAMS on September 5, 2025. (Declaration of Bloom; Exhibit B). Petitioner filed a verified petition to confirm the award on January 21, 2026. The motion is timely.

Petitioner served Respondents with a copy of the verified petition by mail on April 17, 2026. Petitioner demonstrates that the petition and notice of hearing were properly served.

The motion is unopposed. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the plaintiff has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

IV. CONCLUSION

Based on the foregoing, the unopposed motion for order to confirm the arbitration award is GRANTED. Moving party to prepare the formal Order.